

DSHEA/Dietary Supplement (2)

DSHEA Good Manufacturing Practices for Dietary Supplements

Title: Current Good Manufacturing Practice for Dietary Supplements

Jurisdiction: International

Category: Standards

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §402(g); 21 U.S.C. §342(g); implementing regulations, 21 CFR Part 111

Plain English Summary:

A dietary supplement is adulterated if it is prepared, packed, or held under conditions that do not meet applicable current Good Manufacturing Practice (cGMP) requirements. For an Ayurvedic startup, this makes manufacturing controls, identity, quality, purity, specifications, testing, packaging, and recordkeeping important parts of U.S. supplement compliance.

The Exact Legal Text:

21 U.S.C. §342(g):

(1) If it is a dietary supplement and it has been prepared, packed, or held under conditions that do not meet current good manufacturing practice regulations, including regulations requiring, when necessary, expiration date labeling, issued by the Secretary under subparagraph (2).

(2) The Secretary may by regulation prescribe good manufacturing practices for dietary supplements. Such regulations shall be modeled after current good manufacturing practice regulations for food and may not impose standards for which there is no current and generally available analytical methodology. No standard of current good manufacturing practice may be imposed unless such standard is included in a regulation promulgated after notice and opportunity for comment in accordance with chapter 5 of title 5.

The detailed dietary-supplement cGMP requirements are contained in 21 CFR Part 111. FDA's compliance guidance explains that these requirements apply to manufacturing, packaging, labeling, and holding operations for dietary supplements.

Keywords/Triggers:

dietary supplement GMP, Ayurvedic GMP USA, supplement manufacturing, 21 CFR Part 111, cGMP supplements, supplement quality control, supplement testing, 21 USC 342(g)

DSHEA Serious Adverse Event Reporting

Title: Mandatory Reporting of Serious Adverse Events

Jurisdiction: International

Category: Standards

Source Citation: Dietary Supplement and Nonprescription Drug Consumer Protection Act of 2006, §2; FD&C Act, §761; 21 U.S.C. §379aa-1

Plain English Summary:

A responsible person for a dietary supplement marketed in the United States must report serious adverse events associated with the supplement to FDA within the statutory timeframe and maintain the required records. The product label must also provide a U.S. domestic address or telephone number through which serious adverse events can be reported.

The Exact Legal Text:

21 U.S.C. §379aa-1(b)(1):

The responsible person shall submit to the Secretary any report received of a serious adverse event associated with such dietary supplement when used in the United States.

21 U.S.C. §379aa-1(a)(2) defines a serious adverse event by reference to outcomes including:

death, a life-threatening experience, inpatient hospitalization, a persistent or significant disability or incapacity, or a congenital anomaly or birth defect, or the need for medical or surgical intervention to prevent such an outcome.

Keywords/Triggers:

serious adverse event, dietary supplement adverse event, FDA reporting, Ayurvedic supplement safety report, MedWatch supplement, 21 USC 379aa-1, adverse event records, supplement complaint